

Supreme Court of Nova Scotia
(Family Division)

Ex Parte Application by [name of each applicant] [*Applicant/Applicants*]

for an Order to Locate and Detain a Child

Order to Locate and Detain a Child

Before the Honourable Justice

in Chambers

Findings

The child, [name] , born on [date] , has withdrawn from the child's parent, guardian, or agency, namely, [insert name of parent, guardian or agency] , and there are reasonable and probable grounds to believe that the child's health or safety may be at risk.

Order

It is ordered:

- 1 Pursuant to section 29(1)(c) of the *Children and Family Services Act*, each peace officer to whom a copy of this order is delivered shall locate and detain the child, [name] , and upon detaining the child, the peace officer shall, as soon as it is possible, return the child, to [insert name and contact information of the parent, guardian or agency] .

[or]

- 1 Pursuant to section 29(1)(d) of the *Children and Family Services Act*, each peace officer to whom a copy of this order is delivered shall locate and detain the child, [name] , and upon detaining the child, the peace officer shall, as soon as it is possible, deliver the child to a representative of the Minister of Community Services.

[or]

- 1 Pursuant to section 29(1)(e) of the *Children and Family Services Act*, each peace officer to whom a copy of this order is delivered shall locate and detain the child, [name] , and upon detaining the child, the peace officer shall, as soon as it is possible, deliver the child to a child-caring facility as directed by a representative of the Minister of Community Services.

[AND (If appropriate)]

- 2 Pursuant to *Civil Procedure Rule* 60A.28(3), the Affidavit of [name] sworn [date] , 20 , a copy of the recording of the hearing held [date] , 20 , and this order shall be provided to [Minister of Community Services/Mi'kmaw Family and Children's Services] forthwith.

Issued [date] , 20

Prothonotary